Exam.net

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Privacy Center

02. Read Privacy FAQs

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Competitor website

01 | Privacy Center

https://exam.net/privacy-center

Webpage text snapshot | Retrieved 10 October 2026

Your privacy is our priority

Exam.net is used in over 100 countries including at major universities and school groups, so we are very familiar with regional privacy laws and requirements such as GDPR, FERPA, COPPA and SOPIPA.

A message from our team

Exam.net is created by a small development team in Sweden; many of whom are former teachers that are deeply committed, on a personal level, to student privacy.

So we want to be clear about purpose of the personal information we collect about you, and any students that you may invite to use Exam.net: we do it to be able to provide our services to you, and to let you connect exams and answers to the right student.

We don’t own your exams, quizzes or questions (you do).

We will never show you or your students ads.

We will never disclose personal information about you or your students to any third party.

Any student personal information that we may process is collected based on your settings and selections for each exam. We never use students’ personal information for our own purposes.

Should you have any questions or concerns, please send us a message at privacy@exam.net.

The Exam.net team

Exam.net is used in over 100 countries including at major universities and school groups, so we are very familiar with regional privacy laws and requirements such as GDPR, FERPA, COPPA and SOPIPA.

Privacy FAQs

Concise answers to the most common questions regarding privacy.

Read Privacy FAQs

Terms of Use

Acceptable ways to use our products that we expect from all users.

Read Terms of Use

Privacy Policy

(EU and Non-US Customers)

Learn about how we collect, use, and protect your information

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02 | Read Privacy FAQs

https://exam.net/privacy-faqs

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Frequently asked questions about our privacy policy

The following FAQs are meant to summarize the information in our Privacy Policy. They are not a replacement nor an addendum to our Policy.

What personal information do you collect?

Exam.net collects the minimum amount of personal information required to operate our business and deliver our services to you. If you have registered a teacher's account with us, we collect your name and your email address, what school or organization you are connected to and what subjects you teach. We also collect basic usage data, and any information you choose to share with us, for example if you email us.

If you are a student, you are invited to use Exam.net by your school or your teacher. For each exam, test or quiz, your teacher chooses the personal information you must provide before starting the exam. It could be one or several of the following: name, email address, class/course/group, telephone number or student ID number. We never use your personal information for any other purpose than to let your teacher connect your texts or answers to you.

Who do you share my data with?

We never rent or sell your information to third parties. We only share your data with third party service providers that are required to operate our business. We maintain a list of these providers.

We never use personal information about students for any other purpose than to provide our services to teachers or schools.

Does Exam.net require parental consent to process personal information about students under the age of 18?

No, Exam.net does not collect parental consent, as we never process personal information for students at our own initiative. Students are always invited to use Exam.net by their school or teacher, and a Personal Data Processing Agreement (PDPA or DPA) is entered into to regulate the data processing. Any applicable consent from parents or guardians that is required according to local regulations should be requested by the school or school representative.

We do not knowingly collect personal information about users (teachers) under the age of 18.

Who owns the tests, exams or questions I produce or upload as a teacher?

You do.

Do we show targeted advertisements or build a profile of your users for advertising purposes?

No we do not.

Are you COPPA, FERPA and SOPIPA compliant?

Yes, yes and yes. Exam.net complies with federal and state privacy laws including COPPA, FERPA, California Education Code 49073.1 and SOPIPA

What measures in place do you have to protect my data?

We have strict security measures in place to try to protect your information and make sure that it is not lost, damaged or accessed by anyone who should not see it. The third party service providers we use are well-known companies, with very strict security measures. Your personal information is safely stored within the EU/EEA, and any personal information collected within Exam.net is subject to the GDPR regulation.

Can I request to view or delete the personal information you have collected?

Yes, at least under some circumstances. Send us an email at privacy@exam.net and we will review your request.

Where can I get more information on GDPR?

You can find more information on the GDPR and the local supervisory authorities here. Any questions or concerns – send us an email at privacy@exam.net

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03 | Read Our Privacy Policy

https://exam.net/privacy-policy-non-us

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Privacy policy for EU and Non-US Customers

In general

Welcome to Exam.net (the “Service”), provided by Teachiq AB, a Swedish corporation located at Svärdvägen 9, 182 33 Danderyd, Sweden (”Company”, “we” or “us”) through / (the “Website”) This document (”Privacy Policy”) is meant to help you understand what information we collect, why we collect it, how we process and store it and your rights with regard to your personal data. For the purpose of this Privacy Policy, any information that can directly or indirectly be connected to an identifiable living natural person shall be defined herein as ”Personal data”. Please note that if Exam.net is used at the direction of an educational institution, this Privacy Policy may not apply in full, and we ask you to contact your educational organization with any questions on Personal data processing.

What Personal data do we collect?

We strive to collect the minimum of data required to operate Exam.net and provide our services. When you use Exam.net, we will collect and store the following Personal data:

name

email address

school, group, class, or organization

subject(s)

IP address

telephone number

log data

any information that you choose to share with us, for example in an email, website form or survey

The following data will be automatically collected when you use the Service:

information about your use of the Service;

content that you publish, upload, or create by using the Service;

technical data, including the URL you are accessing the Website from, IP address, information about network- and computer capacity, type of browser, language and information about identification and OS.

How do we use your Personal data?

We will never use your information for targeted advertising. We use your Personal data for the following purposes:

to provide Exam.net to you and to make sure you can use it properly;

to manage and administer your account with us;

to communicate with you through email or in other ways;

to inform you on updates of Exam.net, the Privacy Policy or other contractual agreements;

to improve and develop Exam.net;

to analyze your use of Exam.net;

to maintain technical security and prevent misuse;

to fulfill any contractual agreements, including protecting our rights, our property and security; and

to fulfill requirements to comply with applicable laws.

Legal grounds

We collect and process your Personal data based on the following legal grounds:

Fulfillment of contract: to provide you with Exam.net in accordance with the agreement entered into between the educational institution subscribed to our services and us, or to take necessary steps based on the requests of a user prior to entering into an agreement.

Legitimate Interest: we may also use your Personal data based on our legitimate interest to operate, administrate, maintain and improve our Website and our Services to you, including responding to requests from you. This also includes sending information connected to Exam.net, based on our customer relation with you.

You have the right to object to the processing of Personal data based on a legitimate interest. If we receive your objection, we will inform you on the basis on which we have balanced our legitimate interest against yours as an individual.

Who do we share your Personal data with?

We do not sell your Personal data to any third party for marketing purposes. We only share your Personal data with a third party in the following situations:

we may share your Personal data with our third party service providers, such as hosting providers and email service providers, so that they can provide services to us. Such third parties are bound by confidentiality agreements and do not have the right to use your Personal data other than what is necessary to perform the tasks required by us. We maintain a list of these third party service providers.

if we have a legal obligation to disclose Personal data or it is necessary in order to protect our rights

we may share de-identified information or aggregate level data about the use of our services (such information will not be capable of re-identification)

Your Personal data is stored within the EU/EEA. You can acquire further information by contacting us at privacy@exam.net.

Legal requests and preventing harm

We may be required to disclose Personal data in response to a lawful request by a public authority. We reserve the right to access, read, retain, and disclose Personal data as necessary to comply with any law or court order; to enforce or apply our terms of use and other agreements; or to protect the rights, property, or safety of Exam.net, employees, users of the Service, or others.

Cookies, beacons and other technology

Exam.net collects data using technology like cookies, beacons, and local storage (e.g. on your web browser or your device). For information on how we use this type of technology, please refer to our cookie policy.

Security

Exam.net is committed to ensuring that the Personal data you provide to us is secure from accidental loss and from unauthorized access, use, alteration, and disclosure. We have implemented suitable physical, electronic, and organizational measures to safeguard and secure information and protect it from misuse, interference, loss and unauthorized access, modification, and disclosure. – All information you provide to us is stored on our secure servers behind firewalls. – We restrict access to Personal data to employees, contractors and agents who are bound by confidentiality obligations and may be subject to discipline, including termination and legal action, if they fail to meet the obligations for data confidentiality and integrity; – Areas of our website that collect personal data use encryption or other types of pseudonymization; – In the event of a physical or technical incident, Exam.net will be able to restore the availability and access to Personal data in a timely manner; Please be aware that despite our best efforts, no data security measures can guarantee 100% security. The security and safety of your Personal data is also your own responsibility. We advise you to keep your account log-in details confidential and not share them with anyone to prevent unauthorized access to your account and Personal data.

Data retention

When you are a registered user (teacher, staff), we retain your Personal data for 3.5 years (1275 days) counting from the date of the latest login. After that, your account and your Personal data will be deleted. Personal data may still be stored in backup files for 30 days after the deletion, whereafter it is permanently erased and cannot be re-created. If you are a student and use Exam.net at the direction of your school or your teacher, your Personal data is managed by your school organization. If your teacher or school organization does not delete any data beforehand, your Personal data is sent to a temporary archive in our database for 180 days after an exam was created or uploaded by your teacher. Your Personal data remains archived for 3 years, and while in the archive, the data is not visible or used. After 3 years in the archive the data is deleted. Personal data may still be stored in backup files for 30 days after the deletion, whereafter it is permanently erased and cannot be re-created.

Student privacy notice

Exam.net takes the privacy of students very seriously. This website and the Services are not intended for use by users under the age of 18, provided however, that students (including students under the age of 18), may use the Services for educational purposes at the invitation and direction of their school. Other than for students using Exam.net at the direction of their school, we do not knowingly collect information from users under the age of eighteen (18). If you believe that we have collected Personal data from a child under the age of 18 that is not at the direction of the school, please contact us at privacy@exam.net. When students under the age of 18 are directed to use Exam.net by their educational institutions, the verifiable parental consent, if any, for such use shall be provided to and collected by the educational institution attended by the student. It shall not be our obligation to directly obtain parental consent. Parents or legal guardians have certain rights with respect to their student’s data. These rights can be exercised by contacting the student’s school. The school may submit such requests to info@exam.net.

Your privacy rights

The rights in this section refer to the Personal data processed by Exam.net when Exam.net is the so called data controller. If your Personal data is obtained from you in your role as an employee, owner, director, officer or contractor of a company/organization and within the context of Exam.net providing its services to such company/organization, please consult your company/organization for advice on your personal data rights. If you are a student, your Personal data is always collected, stored and processed at the direction of your school and we never use it for marketing or for any other purpose than to provide our services to your teacher or school. Please consult your school for additional information on your Personal data rights. You have an absolute right to object to the processing of your personal data for direct marketing. You also have the right to withdraw your prior given consent, if applicable. Please note that we may continue processing your personal data based on other legal grounds, except for direct marketing. You have the right to access your personal data and to obtain a copy of the personal data that we process relating to you free of charge twice (2) every calendar year, and you have the right to request further information concerning the processing of your personal data. You may also request that we correct, rectify, complete, erase or restrict the processing of your personal data. You may also have the right to data portability. Data portability means that you can receive the personal data that you have provided to us, in a structured, commonly used, and machine-readable format, and have the right to transfer such data to other data controllers. To enforce your rights as described in this section, or if you have any questions about our Personal data processing, please contact us by sending an email to privacy@exam.net or a letter to Teachiq AB at Svärdvägen 9, 182 33 Danderyd, Sweden. To ensure quick handling of your request, please state your full name and the e-mail address that your account is connected to. Please note that we may require you to provide verification of your identity to authenticate your request. You may also have the right to make a GDPR complaint to the relevant Supervisory Authority. A list of Supervisory Authorities is available here.

Change of control

If there is a change of control in our business, we may transfer your Personal data to the new owners for them to continue to provide the Services.

Changes to this Privacy Policy

We reserve the right to, at our own discretion, make changes to this Privacy policy. If we do so, we will inform you on the Website, or by email if changes are extensive. If the changes require your consent, we will give you further notice about this in a way that is suitable under the circumstances and ask for your consent.

Contact information

If you have any questions, comments, complaints, or concerns regarding this Policy, you can contact us anytime at the following address: privacy@exam.net. We take complaints very seriously and will respond shortly after receiving written notice of your complaint. Last updated:

July 16, 2021

Sep 8, 2021

Sep 29, 2021

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04 | Read Our Privacy Policy

https://exam.net/privacy-policy-us

Webpage text snapshot | Retrieved 10 October 2026

Privacy policy for US Customers

Welcome to Exam.net (the “Service”), provided by Exam.net US, Inc., Delaware corporation located at 1013 Centre Road Suite 403-B, WILMINGTON, Delaware (”Company”, “we” or “us”) through / (the “Website”).

The sales of Exam.net as a service is licensed to Exam.net US, Inc. by Teachiq AB, a Swedish limited company. When using Exam.net, your personal information is stored with and processed by Teachiq AB.

This document (”Privacy Policy”) is meant to help you understand what information we collect, why we collect it, how we process and store it and your rights with regard to your personal information. For the purpose of this Privacy Policy, any information that can directly or indirectly be connected to an identifiable living natural person shall be defined herein as ”personal information”.

Please note that if Exam.net is used at the direction of an educational institution, this Privacy Policy may not apply in full, and we ask you to contact your educational organization with any questions on personal information processing.

What personal information do we collect?

We strive to collect the minimum of data required to operate Exam.net and provide our services.

When you use Exam.net, we will collect and store the following personal information:

name

email address

school, group, class, or organization

subject(s)

IP address

telephone number

log data

any information that you choose to share with us, for example in an email, website form or survey

The following data will be automatically collected when you use the Service:

information about your use of the Service;

content that you publish, upload, or create by using the Service;

technical data, including the URL you are accessing the Website from, IP address, information about network- and computer capacity, type of browser, language and information about identification and OS.

How do we use your personal information?

We will never use your information for targeted advertising. We use your personal information for the following purposes:

to provide Exam.net to you and to make sure you can use it properly;

to manage and administer your account with us;

to communicate with you through email or in other ways;

to inform you on updates of Exam.net, the Privacy Policy or other contractual agreements;

to improve and develop Exam.net;

to analyze your use of Exam.net;

to maintain technical security and prevent misuse;

to fulfill any contractual agreements, including protecting our rights, our property and security; and

to fulfill requirements to comply with applicable laws.

Legal grounds

We collect and process your personal information based on the following legal grounds:

Fulfillment of contract: to provide you with Exam.net in accordance with the agreement entered into between the educational institution subscribed to our services and us, or to take necessary steps based on the requests of a user prior to entering into an agreement.

Legitimate Interest: we may also use your personal information based on our legitimate interest to operate, administrate, maintain and improve our Website and our Services to you, including responding to requests from you. This also includes sending information connected to Exam.net, based on our customer relation with you.

You have the right to object to the processing of personal information based on a legitimate interest. If we receive your objection, we will inform you on the basis on which we have balanced our legitimate interest against yours as an individual.

Who do we share your personal information with?

We do not sell your personal information to any third party for marketing purposes. We only share your personal information with a third party in the following situations:

we may share your personal information with our third party service providers, such as hosting providers and email service providers, so that they can provide services to us. Such third parties are bound by confidentiality agreements and do not have the right to use your personal information other than what is necessary to perform the tasks required by us. We maintain a list of these third party service providers and require them to protect student data in a manner no less stringent than this policy.

if we have a legal obligation to disclose information or it is necessary in order to protect our rights

we may share de-identified information or aggregate level information about the use of our services (such information will not be capable of re-identification)

Your personal information is stored within the EU/EEA. You can acquire further information by contacting us at privacy@exam.net.

Legal requests and preventing harm

We may be required to disclose personal information in response to a lawful request by a public authority. We reserve the right to access, read, retain, and disclose personal information as necessary to comply with any law or court order; to enforce or apply our terms of use and other agreements; or to protect the rights, property, or safety of Exam.net, employees, users of the Service, or others.

Cookies, beacons and other technology

Exam.net collects information using technology like cookies, beacons, and local storage (e.g. on your web browser or your device). For information on how we use this type of technology, please refer to our cookie policy.

Security

Exam.net is committed to ensuring that the information you provide to us is secure from accidental loss and from unauthorized access, use, alteration, and disclosure. We have implemented suitable physical, electronic, and organizational measures to safeguard and secure information and protect it from misuse, interference, loss and unauthorized access, modification, and disclosure.

All information you provide to us is stored on our secure servers behind firewalls.

We restrict access to personal information to employees, contractors and agents who are bound by confidentiality obligations and may be subject to discipline, including termination and legal action, if they fail to meet the obligations for data confidentiality and integrity;

Areas of our website that collect personal information use encryption or other types of pseudonymization;

In the event of a physical or technical incident, Exam.net will be able to restore the availability and access to personal information in a timely manner;

Please be aware that despite our best efforts, no data security measures can guarantee 100% security. The security and safety of your personal information is also your own responsibility. We advise you to keep your account log-in details confidential and not share them with anyone to prevent unauthorized access to your account and personal information.

Data retention

When you are a registered user (teacher, staff), we retain your personal information for 3.5 years (1275 days) counting from the date of the latest login. After that, your account and your personal information will be deleted. personal information may still be stored in backup files for 30 days after the deletion, whereafter it is permanently erased and cannot be re-created.

If you are a student and use Exam.net at the direction of your school or your teacher, your personal information is managed by your school organization. If your teacher or school organization does not delete any data beforehand, your personal information is sent to a temporary archive in our database for 180 days after an exam was created or uploaded by your teacher. Your personal information remains archived for 3 years, and while in the archive, the data is not visible or used. After 3 years in the archive the data is deleted. personal information may still be stored in backup files for 30 days after the deletion, whereafter it is permanently erased and cannot be re-created.

Student privacy notice

Exam.net takes the privacy of students very seriously.

This website and the Services are not intended for use by users under the age of 18, provided however, that students (including students under the age of 18), may use the Services for educational purposes at the invitation and direction of their school. Other than for students using Exam.net at the direction of their school, we do not knowingly collect information from users under the age of eighteen (18). If you believe that we have collected personal information from a child under the age of 18 that is not at the direction of the school, please contact us at privacy@exam.net.

When students under the age of 18 are directed to use Exam.net by their educational institutions, the verifiable parental consent, if any, for such use shall be provided to and collected by the educational institution attended by the student. It shall not be our obligation to directly obtain parental consent.

In the course of providing the Service, Exam.net may collect “education records,” as defined by the federal Family Educational Rights and Privacy Act of 1974 (“FERPA”) and personal information that is directly related to an identifiable student (collectively, “Student personal information”). Our collection and use of Student personal information is governed by our Data Processing Agreements with our school customers, including this Privacy Policy, and applicable laws including FERPA, the Children’s Online Privacy Protection Act (“COPPA”), as well as other applicable federal, state and local privacy laws and regulations (“Applicable Laws”). With respect to FERPA, Exam.net receives Student personal information as a “school official” under Section 99.31 of FERPA for the purpose of providing its Products, and such Student personal information is owned and controlled by the school customer.

Your privacy rights

The rights in this section refer to the personal information processed by Exam.net when Exam.net is the so-called data controller. If your personal information is obtained from you in your role as an employee, owner, director, officer or contractor of a company/organization and within the context of Exam.net providing its services to such company/organization, please consult your company/organization for advice on your personal information rights.

If you are a student, your personal information is always collected, stored and processed at the direction of your school and we never use it for marketing or for any other purpose than to provide our services to your teacher or school. Please consult your school for additional information on your personal information rights.

You have the right to object to the processing of your personal information for direct marketing. You also have the right to withdraw your prior given consent, if applicable. Please note that we still may continue processing your personal information based on other legal grounds, except for direct marketing.

You have the right to access your personal information and to obtain a copy of the personal information that we process relating to you free of charge twice (2) every calendar year, and you have the right to request further information concerning the processing of your personal information. You may also request that we correct, rectify, complete, erase or restrict the processing of your personal information.

You may also have the right to data portability. Data portability means that you can receive the personal information that you have provided to us, in a structured, commonly used, and machine-readable format, and have the right to transfer such data to other data controllers.

To enforce your rights as described in this section, or if you have any questions about our personal information processing, please contact us by sending an email to privacy@exam.net or a letter to Exam.net US, Inc. at 769 Monterey Blvd Suite 5A. San Francisco, CA 94127. To ensure quick handling of your request, please state your full name and the e-mail address that your account is connected to. Please note that we may require you to provide verification of your identity to authenticate your request.

You may also have the right to make a GDPR complaint to the relevant Supervisory Authority. A list of Supervisory Authorities is available here.

Special note to California privacy rights

California Civil Code Section 1798.83, also known as the “Shine The Light” law, permits consumers who are California residents to request a list of certain third parties to which we have disclosed personally identifiable information about you for their own direct marketing purposes. You may make one request per calendar year. In your request, please attest to the fact that you are a California resident and provide a current California address for your response. You may request this information in writing by contacting us at: privacy@exam.net. Please allow up to thirty (30) days for a response.

Please note that such disclosure requirements apply only if we share our consumers’ personal information with third parties for them to directly market their own products to those consumers (which we do not do), instead of assisting us with our own business.

Change of control

If there is a change of control in our business, we may transfer your personal information to the new owners for them to continue to provide the Services. We will provide notice and choice to users or school representatives in the situation if data will be used in a manner inconsistent with this Privacy Policy.

Changes to this Privacy Policy

We reserve the right to, at our own discretion, make changes to this Privacy policy. If we do so, we will inform you on the Website, or by email if changes are extensive. If the changes require your consent, we will give you further notice about this in a way that is suitable under the circumstances and ask for your consent.

Contact information

If you have any questions, comments, complaints, or concerns regarding this Privacy Policy, you can contact us anytime at the following address: privacy@exam.net. We take complaints very seriously and will respond shortly after receiving written notice of your complaint.

Last updated: Mar 15, 2022

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05 | Read Terms of Use

https://exam.net/terms-of-use

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Exam.net's Terms of use

GENERAL INFORMATION

Welcome to Exam.net (“the Service”, “the Services”, “the Platform”, “the Website”), provided to you (“the user”, “you”) by one of the following:

if your account is connected to a US educational institution: Exam.net US, Inc., a Delaware Corporation registered at 1013 Centre Road Suite 403-B, Wilmington, Delaware, and located at 769 Monterey Blvd Suite 5A. San Francisco, CA 94127

if your account is connected to a non US educational institution: Teachiq AB, a corporation registered at Svärdvägen 9, 182 33 Danderyd, Sweden and located at Svärdvägen 9, 182 33 Danderyd, Sweden

jointly “Exam.net”, “we”, “us”. Your usage of the Services is conditioned by the terms in this document (”Terms of use”). The Platform is a cloud-based service which assists teachers in carrying out on-line exams with their students. The access and subscription is administered by the relevant educational institution attended by the students. You accept the Terms of Use in this document by checking the box ”Accept our user terms […]” when you register a user account on the Website. Any personal data that you might disclose to us will be treated and processed in accordance with our Privacy Policy, which is applicable when you register your user account, when you use our Services and when you communicate with us. The Services are not intended for use by users under the age of 18, provided however, that students may use the Services for educational purposes at the invitation and direction of their school or teacher. We do not knowingly collect information from users under the age of 18, other than students using the Services at the invitation of their school. Please note that we cannot provide our Services to you unless the users accept these Terms of Use.

USER ACCOUNT AND PASSWORD

To be able to use the Services you must register a user account and sign in. You accept these Terms of Use when registering an account. When registering your user account, you will be prompted to share certain information about yourself, for example your first and last name and your email address. This personal information will be used to provide the Services to you. Read more about how we collect and store your personal information in our Privacy Policy. It is a condition of your use of the Website and the Platform that all the information you provide to us is correct, current and complete. In some cases, we may need to verify the provided user information, in order to make sure that you are an eligible user. You accept that we share certain personal information of yours, such as name and email address, with your school representatives (for example head teacher, school administrator or similar) for that purpose. Your user account is private and you may not transfer your account to a third party. You are responsible for protecting your user name and password so that unauthorized persons do not gain access to your account. You also accept that you may not share (deliberately or by carelessness) your user name and/or password with any third parties, nor let a third party use your account or your access to the Services. If you have reason to believe that an unauthorized third party has gained access to the Services, you are obliged to notify us immediately. We have the right to, but are not obliged to, disable or suspend your account if we have reason to believe that a third party has gained unauthorized access to your user account or if we deem necessary. You agree that you release us now and forever from any liability incurred by you as a result of our termination/suspension of your account and that you shall indemnify, defend and otherwise hold us harmless for any liability, claims, damages, liens, penalties, fines or fees (including attorney’s fees and/or accounting fees) which we may incur or are brought against us by any party as a result, either directly or indirectly of our decision to terminate your account. You acknowledge that without limitation, grounds for termination of your account may include any violation of these Terms of Use by you or any party using your account, the order/request of any regulatory, investigatory, law enforcement, government or judicial agency/entity. As a user, you are entitled to close or remove your account from the Platform at any time, provided that such removal will not delete data, content and materials owned by the educational institution.

USING THE SERVICES

The Services are primarily aimed at teachers as users, but users could also be employed in other teaching roles or administrative functions. Students do not have accounts, and only use the Platform at the invitation and direction of their school or teacher. Under the conditions set forth in these Terms of Use you are given a non-exclusive, non-transferable, revocable, right to use the Service for its intended purposes only. Using the Services After having registered your account, you are able to create and upload tests, quizzes, exams and similar material (in this document referred to as “exams”) on the Platform. Exams that are uploaded to the Platform are considered User material, please refer to the section section INTELLECTUAL PROPERTY RIGHTS AND USER MATERIAL for terms and conditions on User material. For each exam, you may enable and disable a range of tools in the exam settings, and you select what personal information the students have to enter before starting the exam. When you are finished editing the exam and its settings, you may let students access the exam and see the questions and/or the writing area in the Platform by distributing a so-called “exam key”. The students go to exam.net, enter the exam key along with their personal information as selected by you, and then gain access to the specific exam. During the exam, you can monitor the progress of the students’ work on the Platform. When the exam is finished, the students’ answers may be viewed by you. Students’ answers may also be printed and/or downloaded to a chosen space or folder of your choice and control, for sake of clarity, outside of the Platform. Student personal information notice Exam.net has no other purpose to collect and process student personal information apart from ensuring that the teacher can connect submitted answers to the right student and to prevent cheating. Exam.net does not use student personal information or contact details for its own use. The responsibility for ensuring that applicable parties have provided consent, if applicable, to Exam.net’s collection and processing of student information lies solely on the educational institution and its principal organizer. Exam.net shall not be responsible for obtaining such consent and shall not be held liable in the event the educational institution has failed to obtain a valid consent from the students and/or their legal representatives.

UPLOADED MATERIAL AND CODE OF CONDUCT

You are responsible for all user material (please refer to the section INTELLECTUAL PROPERTY RIGHTS AND USER MATERIAL , other information or communication uploaded to the Website by you. You are also responsible for any material uploaded by students who are using the Services at your invitation and direction, and their compliance with these Terms of Use. You accept and guarantee that you will not publish, transfer, distribute or upload any material to the Services that:

is incorrect, misleading or false;

promotes or encourages illegal activity;

is defamatory, obscene, indecent, abusive, offensive, harassing, violent, hateful, inflammatory or otherwise objectionable;

promotes sexually explicit or pornographic material, violence, or discrimination based on race, sex, religion, nationality, disability, sexual orientation or age;

infringes any patent, trademark, trade secret, copyright or other intellectual property or other rights of any other person;

violates the legal rights (including the rights of publicity and privacy) of others or contains any material that could give rise to any civil or criminal liability under applicable laws or regulations or that otherwise may be in conflict with these Terms of Use and our Privacy Policy;

is likely to deceive any person;

impersonates any person, or misrepresents your identity or affiliation with any person or organization.

Furthermore, you accept and guarantee that you will not, and will not allow any third party to:

use the Services to transfer or upload files or other contents that contains viruses, trojans, corrupted data, malware, worms, logic bombs or other software or programs that can cause damage to computers, equipment or properties and that are malicious or technologically harmful,

use the Services to slander, harass, discriminate or threaten another person or in any other way violate a person’s rights,

use the Platform and the Services in any manner that could disable, overburden, damage, or impair the Website or interfere with any other party’s use of the Platform and Services;

modify, adapt, sub-license, distribute or reproduce all of or part of the Services,

change, separate, reverse engineer, decipher, disassemble or decompile any part of the Services, unless it is expressively allowed according to mandatory legislation,

use software that automatically reads and/or collects data from the Services,

use the Services to request or encourage another user to violate the regulations in these Terms of Use,

misuse the Services or use them for any unauthorized or unlawful purpose (including promotion of viruses on the Website or usage of the Services that in any way violates the rights of another person);

use the Service and the Platform for the purpose of exploiting, harming or attempting to exploit or harm minors in any way by exposing them to inappropriate content, asking for personally identifiable information or otherwise;

use the Services and the Platform to stalk, abuse, use profanity, send sexually explicit communication, threaten, intimidate, act in a rude, vulgar, sexist, or derogatory manner, defame, insult, make racially offensive statements, or otherwise harass any user or other individual;

use the Services and the Platform to transmit, or procure the sending of, any advertising or promotional material without our prior written consent, including any “junk mail”, “chain letter” or “spam” or any other similar solicitation;

use the Services and the Platform to engage in any other conduct that restricts or inhibits anyone’s use or enjoyment of our Platform and Services, or which, as determined by us, may harm us or our users or expose them to liability.

The Services may allow you to send messages to other users. You are responsible for all messages sent by you through the Services and you guarantee that you will not send messages that violate these Terms of Use and will not harass or threaten other users. Please note that you may not enter any type of sensitive data (special category data) in the text fields that the Platform may contain. Examples of such data or information could be – but is not limited to – course grades, notes/remarks on social or medical status or development/progress for an individual. For questions concerning sensitive data or special category data, please review our Privacy Policy or alternatively send a message to privacy@exam.net. If you receive messages, images or other material that you think might violate these Terms of Use, or if you believe that the Services are being used for illegal purposes or for purposes that are non-compliant with these Terms of Use, please contact us. Exam.net reserves the right to immediately remove contents from the Website that it, in its own discretion, finds non-compliant with these Terms of Use or policies published on the Website, or in any other way is harmful to Exam.net, the Services, or its users.

NO WARRANTY

YOUR USE OF THE WEBSITE AND THE PLATFORM, THEIR CONTENT AND ANY SERVICES OR ITEMS OBTAINED THROUGH THE WEBSITE AND THE PLATFORM IS AT YOUR OWN RISK. THE WEBSITE AND THE PLATFORM, THEIR CONTENTS AND ANY SERVICES OR ITEMS OBTAINED THROUGH THEM ARE PROVIDED ON AN “AS IS” AND “AS AVAILABLE” BASIS, WITHOUT ANY WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED. NEITHER EXAM.NET NOR ANY PERSON ASSOCIATED WITH EXAM.NET MAKES ANY WARRANTY OR REPRESENTATION WITH RESPECT TO THE COMPLETENESS, SECURITY, RELIABILITY, QUALITY, ACCURACY OR AVAILABILITY OF THE WEBSITE AND THE PLATFORM. WITHOUT LIMITING THE FOREGOING, NEITHER EXAM.NET NOR ANYONE ASSOCIATED WITH US REPRESENTS OR WARRANTS THAT THE WEBSITE AND THE PLATFORM, ITS CONTENT OR ANY SERVICES OR ITEMS OBTAINED THROUGH THE WEBSITE AND THE PLATFORM WILL BE ACCURATE, RELIABLE, ERROR-FREE OR UNINTERRUPTED, THAT DEFECTS WILL BE CORRECTED, THAT OUR SITE OR THE SERVER THAT MAKES IT AVAILABLE ARE FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS OR THAT THE WEBSITE AND THE PLATFORM OR ANY SERVICES OR ITEMS OBTAINED THROUGH THE WEBSITE AND THE PLATFORM WILL OTHERWISE MEET YOUR NEEDS OR EXPECTATIONS. EXAM.NET HEREBY DISCLAIMS ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS OR IMPLIED, STATUTORY OR OTHERWISE, INCLUDING BUT NOT LIMITED TO ANY WARRANTIES OF MERCHANTABILITY, NON-INFRINGEMENT AND FITNESS FOR PARTICULAR PURPOSE. THE FOREGOING DOES NOT AFFECT ANY WARRANTIES WHICH CANNOT BE EXCLUDED OR LIMITED UNDER APPLICABLE LAW.

INTERNET CONNECTION AND TECHNICAL ENVIRONMENT

The Services is a cloud service where the user (the teacher) creates an individual account. The Services is hosted by a well-known company, with data storage in the Netherlands. All personal data is stored encrypted within the EU/EEA. The accessibility and functionality of the Services are dependent on several technical aspects which are out of Exam.net's control including, but not limited to, internet access and server capacity. Exam.net takes no responsibility for the functionality of these technical aspects. You hereby accept that situations could arise where the Services may not be accessible for you, such as, but not limited to, various types of technical maintenance and other circumstances out of Exam.net's control, for which Exam.net shall not be held responsible. Furthermore, we do not take responsibility for any fees connected with establishing and maintaining access to the Services, such as operators', internet access or roaming fees.

INTELLECTUAL PROPERTY RIGHTS AND USER MATERIAL

Content

You understand and accept that the Platform and the Services may contain material supplied by us, and that such material, in whole or parts of, can be subject to copyright, trademark and/or patent protection or can be protected by trade secret and other intellectual property or proprietary rights laws. We (and, as applicable, our licensors) own all right, title and interest in and to the Platform and the Services, including any data, information, and software therein, text, displays, images, video and audio, the design, selection and arrangement thereof. Title to the Services, data, information, and software is vested solely with us and/or our licensors. These Terms of Use do not in any way entail a transfer and assignment of title or any other intellectual property rights to the Service or its content to you. We may terminate your right to use the Service at any time in the event of a material breach of one or more of the provisions contained herein, including but not limited to, perceived or actual infringement of any of our and/or our licensors' copyright or other intellectual property rights. You agree to respect intellectual property, such as, but not limited to, copyright, brands, trademarks and company names (registered or not) included or displayed on the Website or that you have gained access to in connection to the Services. The above is also applicable for data compilations and material on the Website that are to be regarded as a database. These Terms of Use permit you to use the Platform and the Services for your personal use only. You receive no other license to use any intellectual property, other than that explicitly allowed according to these Terms of Use. Outside the scope of the license granted herein, you must not:

Modify copies of any materials from our Platform and Services;

Use any illustrations, photographs, video or audio sequences or any graphics separately from their building blocks;

Delete or alter any copyright, trademark or other proprietary rights notices from the materials from our Platform and Services.

You understand and accept that content published on the Website may belong to third parties, and that we are not in control of such content. Therefore, you understand and accept that we do not control, assume no liability for, and will not be held responsible for contents provided by third parties, displayed or made accessible on the Website.

User material

You may upload text, written comments, data, images, exercises, quizzes, tests, exams and other information (“User material”) to the Website. Please note that uploading or in any other way entering sensitive data, special category data or confidential material to the Website/the Services is not allowed. This also applies to any text fields that the Platform may contain. Such information could be – but is not limited to – course grades, remarks or notes on social or medical status or progress for an individual, as well as scanned confidential tests and exams. The User material is your property or is the property of the third party that holds the rights to such User material (and no ownership right to User material is transferred to us under these Terms of Use). You guarantee that you hold all the applicable rights to show, upload and use the User material and you grant us the right to publish and use the User material as described. In case any User material infringes on the intellectual rights of any third party, you consent to immediately remove all infringing parts of the User material and you assume full liability for any claims arising out of such infringement. Exam.net is not to be held liable for any damage, costs or expenses caused by such an infringement. We may review parts of the User material, but we do not commit to reviewing all User material. We reserve the right to remove any User material that violates the Terms of Use, that poses a risk of causing infringement, that is deemed not qualified or for any other reason is deemed not to contribute to better Services. If we become aware of or have reason to believe that your User material infringes on the intellectual properties of a third party, we have the right, but not the obligation, to remove all such material from the Website and we may deny further access to your User account, temporarily or permanently. We reserve the right to: (a) remove any User material for any or no reason in our sole discretion; (b) take any action with respect to any User material that we deem necessary or appropriate in our sole discretion, including if we believe that such User material violates the Terms of Use, infringes any intellectual property right, right of publicity or other right of any person or entity, threatens the personal safety of users of the Website and the Platform or the public or could create liability for Exam.net. (b) disclose your identity or other information about you to any third party who claims that material posted by you violates their rights, including their intellectual property rights or their right to privacy. (c) take appropriate legal action, including without limitation, referral to law enforcement, for any illegal or unauthorized use of the Platform and the Services. (d) terminate or suspend your access to all or part of the Website and the Services for any or no reason, including without limitation, any violation of these Terms of Use. (e) without limiting the foregoing, we have the right to fully cooperate with any law enforcement authorities or court order requesting or directing us to disclose the identity or other information of anyone posting any materials on or through the Website and the Platform. YOU WAIVE AND HOLD HARMLESS EXAM.NET AND ITS AFFILIATES, LICENSEES AND SERVICE PROVIDERS FROM ANY CLAIMS RESULTING FROM ANY ACTION TAKEN BY US/ANY OF THE FOREGOING PARTIES DURING OR AS A RESULT OF ITS INVESTIGATIONS AND FROM ANY ACTIONS TAKEN AS A CONSEQUENCE OF INVESTIGATIONS BY EITHER EXAM.NET/SUCH PARTIES OR LAW ENFORCEMENT AUTHORITIES.

LIMITATION OF LIABILITY

TO THE FULLEST EXTENT PERMITTED BY LAW, IN NO EVENT SHALL EXAM.NET BE LIABLE FOR ANY DIRECT OR INDIRECT DAMAGES, LOSS OF DATA, BUSINESS, PROFITS, COMPUTER HARDWARE OR SOFTWARE. IN NO EVENT SHALL EXAM.NET’S LIABILITY EXCEED $150. You must make any claims for damages no later than three (3) months after you discovered or should have discovered the basis for the claim, otherwise your right to make such a claim shall be forfeit.

INJUNCTIVE RELIEF

You acknowledge that any breach of these Terms of Use may cause irreparable damage to us, the exact amount of which will be difficult or impossible to ascertain, and that the remedies at law for any such breach may be inadequate. Consequently, the user agrees that in the event of a breach of the above mentioned, in addition to any other remedy which may be available in this Agreement, in law or in equity, Exam.net shall be entitled to specific performance and injunctive relief (both temporary and permanent).

INDEMNIFICATION

You agree to defend, indemnify and hold harmless Exam.net, its affiliates, licensors and service providers, and its and their respective officers, directors, employees, contractors, agents, licensors, suppliers, successors and assigns from and against any claims, liabilities, damages, judgments, awards, losses, costs, expenses or fees (including reasonable attorneys' fees) arising out of or relating to your violation of these Terms of Use or your use of the Website and the Platform, including, but not limited to, your User materials, any use of the Platform's content, the Services and products other than as expressly authorized in these Terms of Use or your use of any information obtained from the Platform.

CHANGE OF TERMS AND TERMINATION OF THE SERVICES

We reserve the right to change these Terms of Use. We will inform you of upcoming changes on exam.net or via the email address provided by you. We may, in our sole discretion and at any time, amend the Service provided that the functionality of the Service is not materially decreased. If we intend to change the Service by materially decreasing or removing functionality then we will inform you of upcoming changes on exam.net or via the email address provided by you prior to such change becoming effective. You have the right to, at any time and without previous notification, terminate your user account. Termination or de-registration is done by sending an email with your request. We have the right to immediately deny access to the Services, if we have reason to believe that you are in violation of these Terms of Use. Furthermore, we reserve the right to, at our own discretion, at any time modify, pause, or terminate the Services, temporarily or permanently without previous notification, if required by law or decision by authority. You accept that we are not responsible towards you or any third party for such modifications, pauses or terminations.

TRANSFERS OF THIS AGREEMENT

You are not allowed to transfer any rights, obligations or licenses granted to you by these Terms of Use. If the ownership of our business changes, we might transfer these Terms of Use, information, user accounts including contents, to the new owners so that they can continue providing the Services to you. Furthermore, we hold the right to, at our own discretion, transfer our obligations according to these Terms of Use to a third party, for them to execute our obligations in our place.

GOVERNING LAW AND JURISDICTION

US customers:

All matters relating to the Platform, the Website and these Terms of Use and any dispute or claim arising therefrom or related thereto (in each case, including non-contractual disputes or claims), shall be governed by and construed in accordance with the internal laws of the State of California without giving effect to any choice or conflict of law provision or rule (whether of the State of California or any other jurisdiction). Any legal suit, action or proceeding arising out of, or related to, these Terms of Use or the Website and the Platform shall be instituted exclusively in the federal courts of the United States or the courts of the State of California although we retain the right to bring any suit, action or proceeding against you for breach of these Terms of Use in your country of residence or any other relevant country. You waive any and all objections to the exercise of jurisdiction over you by such courts and to venue in such courts.

Customers outside the USA:

All matters relating to the Platform, the Website and these Terms of Use are subject to the exclusive jurisdiction of the Swedish courts and are to be governed and construed according to Swedish law.

WAIVER AND SEVERABILITY

No waiver by Exam.net of any term or condition set forth in these Terms of Use shall be deemed a further or continuing waiver of such term or condition or a waiver of any other term or condition, and any failure of Exam.net to assert a right or provision under these Terms of Use shall not constitute a waiver of such right or provision. If any provision of these Terms of Use is held by a court or other tribunal of competent jurisdiction to be invalid, illegal or unenforceable for any reason, such provision shall be eliminated or limited to the minimum extent such that the remaining provisions of the Terms of Use will continue in full force and effect.

ENTIRE AGREEMENT

The Terms of Use and our Privacy Policy constitute the sole and entire agreement between you and Exam.net with respect to the Website and the Platform and supersede all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to the Website and the Platform.

YOUR COMMENTS AND CONCERNS

All feedback, comments, requests for technical support and other communications regarding the Website and the Service should be sent to:

if your account is connected to a US educational institution: infous@exam.net

if your account is connected to a non US educational institution: info@exam.net

Thank you for visiting and using our Platform and Services. Last Updated: March 12, 2024

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